

26STCV06895 26STCV06895

County: los-angeles

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Case Number: 26STCV06895 Hearing Date: September 1, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING DATE: September 2, 2026 TRIAL DATE: Not set.

CASE: Garcia v. Nobu LA, LLC, et al.

CASE NO.: 26STCV06895

MOTION TO COMPEL ARBITRATION

MOVING PARTY/PARTIES: Defendants Nobu, L.A., LLC and Darren Kim

RESPONDING PARTY/PARTIES: Plaintiff Daniel Garcia

PROOF OF SERVICE:

· Plaintiff addresses the merits of Defendants' motion, and thereby waived any procedural objections. (See *In re Marriage of Falcone* (2008) 164 Cal.App.4th 814, 826.)

CASE HISTORY:

· March 3, 2025: Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Daniel Garcia ("Plaintiff") sued his former employer, Defendant Nobu LA, LLC ("Nobu"), and his former supervisor, Darren Kim ("Kim") for employment discrimination. Plaintiff alleges that Kim terminated Plaintiff's employment with Nobu

based on Plaintiff's disability. Nobu and Kim (collectively, "Defendants") move to compel Plaintiff to arbitrate his claims. Plaintiff opposes the motion.

TENTATIVE RULING:

Defendants' motion to compel arbitration is GRANTED.

Moving party to give notice.

DISCUSSION:

Motion to compel arbitration

The moving party on a petition to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination." (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842, internal quotations and citations omitted.)

Defendants advance an arbitration agreement that Plaintiff signed when Plaintiff worked for Nobu. The arbitration agreement provides that Plaintiff and Nobu agree to arbitrate "controversies . . . past, present, and future, arising out of [Plaintiff's] employment (or application for employment or its termination) with Nobu, that may arise between [Plaintiff] and (1) Nobu; (2) its officers, directors, employees, or agents in their capacity as such or otherwise" (Declaration of Yvonne Lopez in Support of Motion to Compel Arbitration, Exhibit 1.) Defendants meet their burden to show that the parties entered into an agreement to arbitrate their claims.

In opposition, Plaintiff argues that the arbitration agreement is unconscionable under *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83. The arbitration agreement Plaintiff signed specifies that the Federal Arbitration Act governs. (Declaration of Yvonne Lopez in Support of Motion to Compel Arbitration, Exhibit 1.) A choice of law provision in an arbitration agreement is enforceable. (See *Coopers & Lybrand v. Superior Court* (1989) 212 Cal.App.3d 524, 538.) As such, the Federal Arbitration Act applies. Under the Federal Arbitration Act, defenses that derive their meaning from the fact that an agreement to arbitrate is at issue cannot invalidate agreements to arbitrate. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.) The rules set forth in *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83 are specific to arbitration agreements. (See *Abramson v. Juniper Networks, Inc.* (2004) 115 Cal.App.4th 638, 661.) These rules therefore cannot invalidate the arbitration agreement between Plaintiff and Nobu. Accordingly, the Court considers whether the arbitration agreement is unconscionable under general principles of California law.

Per Civil Code section 1670.5, "If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result." (Civ. Code, 1670.5, subd. (a).) Unconscionability is defined as "an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party." (*A & M Produce Co. v. FMC Corp.* (1982) 135 Cal.App.3d 473, 486.) Unconscionability thus has a procedural and a substantive element. (*Ibid.*) The Court considers the factors of oppression and surprise in determining whether a contract is procedurally unconscionable. (*Ibid.*) Oppression refers to inequality of bargaining power, which cuts off meaningful negotiation. (*Ibid.*) Surprise refers to the concealment of the agreed-upon terms in a lengthy form drafted by the party seeking to enforce them. (*Ibid.*)

Substantive unconscionability refers to the extent to which a contractual term reallocates the risks of a transaction “in an objectively unreasonable or unexpected or unexpected manner.” (Id. at 487.) Both substantive and procedural unconscionability must be present for a contract to be unenforceable, and “the greater the unfair surprise or inequality of bargaining power, the less unreasonable the risk allocation which will be tolerated.” (Ibid.)

The evidence before the Court shows that Nobu prepared the arbitration agreement, and Plaintiff had no opportunity to negotiate or discuss the terms of the arbitration agreement. Nobu required Plaintiff to execute the arbitration agreement as a condition of his continued employment. It is therefore a contract of adhesion. (See *Neal v. State Farm Ins. Companies* (1961) 188 Cal.App.2d 690, 694.) This is some evidence of procedural unconscionability. (*Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 853.)

Plaintiff has not, however, demonstrated that the arbitration clause is substantively unconscionable. Plaintiff argues the arbitration agreement is substantively unconscionable because it is one-sided. However, the arbitration agreement Plaintiff signed is fully mutual. It state requires arbitration of claims “[Plaintiff] may have against [Nobu] . . . , or that the [Nobu] may have against [Plaintiff].” (Declaration of Yvonne Lopez in Support of Motion to Compel Arbitration, Exhibit 1.)

Plaintiff also argues that the arbitration agreement contains substantively unconscionable fee-shifting provisions. It does not. The arbitration clause states, “Each party shall pay in the first instance its own litigation costs and attorneys’ fees, if any. However, if any party prevails on a statutory claim that affords the prevailing party attorneys’ fees and litigation costs, or if there is a written agreement providing for attorneys’ fees and/or litigation costs, the Arbitrator shall rule upon a motion for attorneys’ fees and/or litigation costs under the same standards a court would apply under the law applicable to the claim(s) at issue.” (Declaration of Yvonne Lopez in Support of Motion to Compel Arbitration, Exhibit 1.) As such, the arbitration agreement allows for recovery of attorneys’ fees and costs to the same extent as California law. The arbitration clause is not unenforceable. Plaintiff also cites *Phan v. Knight Sacramento SU Inc.* (2026) 121 Cal.App.5th 641, which is not on point. In that case, the Court concluded the arbitration agreement was substantively unconscionable because it applied to “any claim that arises out of the employment context or any other interaction/relationship we had, have or may have in the future.” (*Phan v. Knight Sacramento SU Inc.* (2026) 121 Cal.App.5th 641, 655.) Here, the arbitration agreement is limited to claims concerning Plaintiff’s employment with Nobu. (Declaration of Yvonne Lopez in Support of Motion to Compel Arbitration, Exhibit 1.) As such, the arbitration agreement is not overbroad. Accordingly, Defendants’ motion to compel arbitration is GRANTED. This case is stayed pending arbitration.

Moving party to give notice.

IT IS SO ORDERED.

Dated: September 2, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

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